Founding (Pre-Revenue) Offer → Tier 1 — Design Spec

A two-phase advertiser offer: a capped Founding / Pre-Revenue offer that funds the launch, then a standard Tier 1 offer that takes over once the founding cap fills. Planning/discussion doc — nothing is coded yet. Not legal advice; the disclosure points below are for counsel.

The model in one picture

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 PHASE 1 — FOUNDING (PRE-REVENUE)                           PHASE 2 — TIER 1 (STANDARD)
first 200,000 founding advertisers        ──▶              opens automatically when the
• prepay the Tier 1 price ($13,000)                         200,000th founding slot is taken
• double as year-1 beta users + feedback                    • same core, founder-only perks removed
• $2,000 site credit over 12 months                         • existing founders GRANDFATHERED (keep it all)
• get EVERY perk (current + all add-ons)
        │
        └─ PHASE 1: funds acquire the 200,000 prelaunch users + 200,000 MORE
           regular users (~400,000 total) the founders advertise to.
           PHASE 2: after both, funds = owner's discretion, ANY business purpose
```

Phase 1 — The Founding / Pre-Revenue Offer

- **Cap: the first 200,000 founding advertisers** (a hard slot cap, independent of user count).
- **Purpose — pre-revenue capital (use-of-funds is TWO-PHASE).** Founders prepay the Tier 1 price up front. **Phase 1 (restricted):** the funds are **directed to user acquisition until BOTH** (a) the **200,000-user prelaunch milestone** (the launch gate below) **and** (b) an **additional 200,000 regular users** — the audience the founders advertise to — are acquired (~**400,000 users total**). Acquiring **both** user groups is part of Phase 1. **Phase 2 (discretion):** once Phase 1 is complete, the funds are **the owner's to spend however the owner chooses, for any lawful business purpose** — Phase 2 is *only* the discretionary spend. **[COUNSEL: two-phase use-of-funds — confirm against the pre-sale/consumer-protection framing and the funds model; the user figures are goals, not guaranteed reachable-audience counts.]**
- **Founders double as year-one users + feedback partners.** They actively use the platform for the first year and provide feedback — framed as a founding-partner *privilege/role*, not a paid obligation.
- **$2,000 in on-site credit, spent over 12 months** (~$166.67/month, non-cashable Site Cash) — the firm founding credit (this supersedes the old "up to $2,000 gift boost, subject to availability" wording).

The launch gate

Full public launch does **not** happen until the founding capital has acquired **≥ 200,000 regular premium users.** Until then, founder advertising delivers **capacity-paced** (as the audience grows) and is backed by the delivery guarantee — no fixed year-one volume is promised, and any shortfall is made good over time.

Payment & the guarantee (decision: option (b))

- **200,000 is an aspirational headline ceiling**, and the guarantee is **purely capacity-paced with NO fixed timeline**: "your advertising delivers as our audience grows, and we keep delivering — free — until you've received the full amount you were promised."
- **One payment, nothing more until you're made whole.** A founder pays the $13,000 **once, up front**, and **owes no additional dollar** — no renewal, no top-up — **until their full guaranteed advertising has been delivered.** We keep serving it (make-good, no time cap) until met. This is already how the deliver-until-met guarantee works; the founding offer states it explicitly.

Founding perks — EVERYTHING (current stack + all add-ons)

Already in the app (keep all): 1. 200,000 ad impressions / year, on a 4-year term 2. 100,000 launch-bonus impressions (one-time) 3. Premier featured placement + a spot on the sponsors wall 4. Free AI-written ad creative (ongoing refresh) 5. Always-on AI campaign manager + optimization 6. ~30 AI social ad posts / month (clearly labeled) 7. A/B testing, real-time analytics & attribution, consumer-sentiment insights 8. Priority concierge support 9. Premium membership included 10. **$2,000 site credit over 12 months** (non-cashable) 11. Full-Value Delivery Guarantee (make-good, deliver-until-met) 12. 30-day proportional cancellation (keep 2/3, refund 1/3) 13. Value stack: $13,000 → ~$26,000 in advertising value (2×), backed by guaranteed value-match impressions

Added (all of the "could-add" list): 14. **Founding price locked forever** — the $13,000 rate never rises for as long as they stay 15. **"Founding Partner" verified badge** + a permanent spot on a public Founding Partners wall 16. **Category exclusivity / first right of refusal** during the founding window 17. **Audience-growth dividend** — impression allotment grows automatically as the user base grows 18. **Grandfathering** — keep the entire founding perk stack permanently, even after Tier 1 takes over 19. **Founder referral bonus** — refer another advertiser, earn bonus impressions / account credit 20. **Dedicated onboarding + quarterly strategy session** (AI campaign manager, human escalation) 21. **Roadmap input / founder advisory** + first beta access to every new ad surface & AI tool 22. **Co-marketing** — launch PR, "founding partners" announcements, case studies 23. **Keep 100% of your own survey earnings — for life** (as Site Cash; supersedes the 100%→75% revert) 24. **Annual free creative refresh / seasonal campaign packs** 25. **Better make-good / extended cancellation terms** than standard Tier 1 26. **Locked-in renewal rate** (kept from the current stack; now framed as the for-life price lock in #14) 27. **Early access** to new surfaces (kept from the current stack; folded into #21)

Max-scale feature entitlement — every feature at Tier 3 / Unlimited, free

On top of the entire add-on catalog above, a founding advertiser (`is_founding`) resolves to the **Tier 3 / Unlimited capability level for every tier-gated feature** — e.g. maximum AI Creative Suite generations, all ad formats, unlimited concurrent experiments, multivariate testing, the full autonomy ceiling, predictive learning, and image / video / brand-kit / localization / auto-refresh. This is the **most scaled-up version of every feature, at no extra cost**, gated by `FOUNDING_MAX_SCALE_ENABLED` (default ON).

Capability, not volume — state this accurately. This maxes feature **capability**, not delivered ad-impression **volume**: the founding impression allotment (#1, #2, #17) is unchanged and still governed by the capacity-paced, deliver-until-met guarantee. No revenue/ROI promise attaches — it is additional **advertising value delivered** (capability access), never a return.

Phase 2 — Tier 1 (takes over when the 200,000th slot fills)

Same compliant core, founder-only perks removed so the founding deal stays clearly the best.

Tier 1 keeps: 200,000 impressions/yr + 4-year term · value stack ($13,000 → ~$26,000) · Full-Value Delivery Guarantee · AI creative + AI campaign manager · analytics / A-B / sentiment · premium membership · 30-day cancellation · **AI-powered concierge support (human escalation available)** — kept, not dropped.

Tier 1 drops / reduces vs founding: - **No** 100,000 launch-bonus impressions (founding-only) - Survey earn-share **reverts to the standard 75%** (founders keep 100% for life) — *already built into the code* - **No** for-life Tier 2 discount (standard rate, or a smaller time-limited one) - **No** Founding badge / co-marketing / category exclusivity - Renewal rate **not** locked for life (founders keep the for-life price lock) - Optionally a slightly **higher price** or a **reduced credit**, to keep the founding deal clearly better

(Support: Tier 1 keeps concierge, delivered by AI with human escalation — same model as the AI campaign manager, so it's not sold as a dedicated human hire.)

The handoff (automatic)

When the founding advertiser count hits **200,000**, the `/Apply` page flips the headline from **"Founding Advertiser — Tier 1"** to plain **"Tier 1,"** founding-only perks stop being offered to *new* signups, and **existing founders keep everything they signed up for** (grandfathered). The countdown ("Founding closes at 200,000 partners — N slots left") becomes a real marketing hook.

⚠ Reality check — the 200,000-advertiser cap vs deliverable inventory

This is the one part of the plan I have to push back on, because it's the exact oversell problem the inventory governor guards against:

- 200,000 founders × 200,000 guaranteed impressions/yr = **40,000,000,000 (40 billion) impressions promised per year.**
- 200,000 premium users × ~8 impressions/active day × 365 ≈ **584,000,000 (584 million) servable per year.**
- That's **~68× oversold.** Even with capacity-paced "deliver until met," clearing the promised volume at a 200k-user audience would take **~68 years** — far beyond the 4-year term.
- At a 200k-user audience, the inventory can serve roughly **~2,900 advertisers per year** at the full 200k/yr allotment — not 200,000.
- (For scale: a full 200,000 × $13,000 would be **$2.6 billion** prepaid — useful as a headline ceiling, but not a realistic near-term signup count.)

Decision: (b) — chosen. Keep "200,000" as an **aspirational headline ceiling**, with the guarantee stated **purely**

capacity-paced, no fixed timeline ("your impressions deliver as our audience grows, and we keep delivering — free — until you've received the full amount, however long it takes"). This is workable and the governor already enforces it (it never promises a fixed year-one volume it can't serve). The ~68× gap must be **disclosed clearly and conspicuously** so no founder infers a near-term delivery date — that disclosure is what keeps a capacity-paced, no-timeline promise substantiable. (Options (a) right-size and (c) lower per-founder impressions remain available later if the disclosure feels too heavy.)

The governor already prevents silent overselling (it capacity-paces and never promises a fixed year-one volume it can't serve) — so nothing breaks — but a 200k-advertiser headline sets an expectation the audience can't meet for decades. Worth deciding before this goes in front of advertisers or counsel.

⚠ On "ROI" — what the guarantee can and cannot say

The plan is to guarantee delivery **"along with their ROI."** We **cannot** guarantee ROI/return, and this is the one hard line to hold:

- **Guaranteeing an ROI or a return is a performance/financial guarantee** — unmeasurable off-platform (it depends on the advertiser's own offer, margins, and funnel), an **FTC red flag**, a **payment-processor red flag**, and an **unbounded liability** (you'd owe against their sales with no natural cap). It's the single fastest way to get an account shut down or a claim filed.
- **What we CAN guarantee — and it does the same marketing job — is the full ADVERTISING VALUE delivered.** The founder pays $13,000 and is guaranteed to **receive ~$26,000 of advertising** (the 2× value stack: impressions, placements, creative, managed service at conventional rates), **delivered capacity-paced until met, with no additional payment until then.** That's a concrete "you get more than you paid for" promise we can actually stand behind and measure on-platform.
- **We can also give them results *reporting*** — benchmarks and measured outcomes for their campaigns — we just **never guarantee a revenue number.** "Here's what your advertising delivered and how it performed" is fine; "we guarantee you'll make X back" is not.

The compliant translation of "delivery + their ROI": "*You pay $13,000 once. You're guaranteed the full ~$26,000 of advertising you were promised — we keep delivering it until you've received every dollar of it, at no extra charge — and you'll see exactly what it delivered.*" Same emotional payload (more value than you paid, guaranteed), zero return/ROI promise.

Compliance notes (for counsel)

- **Prepayment, not credit.** Founders prepay for advertising services; the capital is unearned revenue recognized as delivery occurs. The funds are **directed to user acquisition until the 200,000 prelaunch + 200,000 additional regular users (~400,000 total) are reached, and are the owner's to use for any lawful business purpose thereafter** — fine **provided** the capacity-paced, deliver-until-met guarantee is disclosed up front and honored (no fixed launch date or year-one volume is promised), and enough is reserved to actually deliver the advertising sold.
- **$2,000 site credit** is non-cashable, closed-loop, spendable only on-site over 12 months — never cash.
- **Feedback/beta role** is a founding privilege, not compensation, and the survey earn-share is a share of *whatever they actually earn*, non-guaranteed, paid as Site Cash — never a return on the advertising.
- **No revenue/ROI promise anywhere** — every figure is advertising *value delivered*.
- **Grandfathering + for-life price lock** are pricing benefits (a rate lock), never a promised return.

Decisions locked

- **Founding cap:** 200,000 advertisers as an **aspirational headline ceiling**; guarantee is **capacity-paced, no fixed timeline** (option (b)). ✅
- **Payment:** one $13,000 prepayment; **no additional dollar owed until the full guaranteed advertising is delivered** (make-good until met). ✅
- **Guarantee wording:** the full **~$26,000 of advertising value delivered** (2×) until met — **NOT** an ROI or revenue guarantee. Results are *reported/benchmarked*, never guaranteed. ✅
- **Founding perks:** entire current stack **plus** all add-ons (list above); founders keep 100% survey earn-share for life and are grandfathered. ✅
- **Tier 1 takeover:** at the 200,000th slot; reductions per the list; existing founders grandfathered. ✅

Decisions locked (added)

- **Guarantee reframe accepted:** advertising **value delivered (~$26k / 2×), pay-once-until-met, results reported not guaranteed** — never an ROI/return promise. ✅
- **Post-founding Tier 1 keeps concierge support**, delivered by **AI** (human escalation available). ✅

Built (2026-08-20)

- **Founding cap = 200,000** (`FOUNDING_ADVERTISER_SLOTS`) — aspirational headline; capacity-paced, no timeline.
- **Post-founding Tier 1 = +30%** over founding (`TIER1_PRICE_UPLIFT_OVER_FOUNDING_PCT` = 0.30): $13,000 → **$16,900**. Founders keep their founding price (grandfathered). The signup + `/Apply` price flip automatically when the cap fills.
- **Category exclusivity for every founder** (`FOUNDING_CATEGORY_EXCLUSIVITY`, on): a founder claims a category no other live founder can hold; enforced at signup (`foundingCategoryTaken`).
- **Capacity-paced delivery disclosure** (`FOUNDING_DISCLOSURE_COPY`, built-in default) — recorded in the consent ledger at signup and shown clear-and-conspicuously on `/Apply`.
- Founding perks surfaced on `/Apply` (founding price lock, Founding Partner badge, for-life Tier 2 discount, 100%-for-life earn-share, category exclusivity); post-founding Tier 1 drops the founder-only ones and keeps AI concierge support. Tests: 61 pass; build + audit clean.

Built (2026-09-11)

- **Founding max-scale feature entitlement** (`FOUNDING_MAX_SCALE_ENABLED`, default ON): a founding advertiser (`is_founding`) resolves to the **Tier 3 / Unlimited** capability level for every tier-gated feature (maximum AI Creative Suite generations, all ad formats, unlimited concurrent experiments, multivariate testing, full autonomy ceiling, predictive learning, image/video/brand-kit/localization/auto-refresh) — on top of the existing free add-on catalog. **Caps feature capability, not ad-impression volume** (the founding impression allotment is unchanged); no revenue/ROI promise — advertising value delivered only.

Finalized delivery disclosure (2026-08-21)

The built-in `FOUNDING_DISCLOSURE_COPY` default is now the finalized, clear-and-conspicuous copy a founder must see and accept before buying (recorded to the consent ledger; shown on `/Apply`). It carries four non-negotiable points — override the setting only to tailor for a jurisdiction, and keep all four:

1. **Capacity-paced delivery — no fixed timeline.** Guaranteed by amount, not by date; delivers as the audience grows; no promised delivery date and no promised year-one volume.
2. **Delivered in full, at no extra cost, however long it takes.** Pay once, up front; owe nothing further; we keep delivering free until the full promised amount is received.
3. **What is guaranteed = advertising delivered** (a stated dollar amount of impressions/placements measured on our own surfaces) — **NOT** revenue, sales, sign-ups, ROI, or any business result.
4. **Not an investment** — a purchase of advertising and membership, not a security; no profit or "multiple" promised or implied.

Counsel may further tailor the wording for a buyer's jurisdiction, but the four points above must survive — the delivery guarantee frames advertising delivered, never ROI.

Use-of-funds intent letter (DRAFT — for counsel to review & tighten; NOT live)

This section carries a DRAFT of the owner's use-of-funds commitment so it travels with the offer for counsel to review and tighten. It is not published in any member-facing document, `/Apply` flow, or marketing surface, and must not be used until counsel has (a) chosen between a binding covenant and a non-binding statement of intent, (b) confirmed how it interacts with the funds model (`FOUNDING_FUNDS_MODEL`: presale / escrow / hybrid) and the refund/escrow representations, and (c) finalized the language and the records/evidence standard. Full analysis and confirm-points are in `SESSION-2026-09-05-AUTONOMY-DATA-AND-FOUNDING-TERM-COUNSEL-NOTE.md` (confirm-points 5–6). Two variants:

Owner's directed terms (updated 2026-09-13 — TWO-PHASE) captured in the drafts below: (1) founding contributions are **non-refundable**; (2) **Phase 1** — the funds are **directed to user acquisition until BOTH** the **200,000-user prelaunch milestone** and an **additional 200,000 regular users** (the audience founders advertise to; ~**400,000 total**) are reached; (3) **Phase 2** — **once both milestones are met, the funds are the owner's to use at its discretion for any lawful business purpose** (this broadens the earlier "invest specifically in the audience" wording, which itself reversed a still-earlier "funds only for completing the offer" draft); and (4) as a **value** matter (separate from fund use), each **founding business still gets a free additional year of marketing access**. The user figures are **goals, not guaranteed reachable-audience counts**; the **free marketing year** is a delivery obligation to add to the value stack / delivery guarantee (confirm-point 6). **[COUNSEL: two-phase use-of-funds — confirm against the pre-sale/consumer-protection framing, the funds model, and the non-refundable representation; note**

earmarking to acquisition in Phase 1 may lean toward escrow/custodial treatment for that phase.]

Variant A — statement of current intent (softer):

> "Founding contributions are a non-refundable purchase of advertising and membership — not funds held in trust. Until we have (1) reached the 200,000-user prelaunch milestone and (2) acquired an additional 200,000 regular users for founding businesses to advertise to (about 400,000 users in total), we direct these funds to acquiring those users and building that audience. Once both milestones are met, we may use these funds at our discretion for any lawful business purpose. As part of this offer we also give each founding business an additional year of marketing access to the platform's user audience at no extra charge. These statements describe our plans and the value we intend to deliver; the user figures are goals, and nothing here guarantees any specific audience size, reach, result, revenue, or financial return."

Variant B — commitment/covenant (stronger; only if counsel advises it can be honored and evidenced):

> "Founding contributions are non-refundable. Until we have reached the 200,000-user prelaunch milestone and acquired a further 200,000 regular users for founding businesses to advertise to (about 400,000 users in total), these funds are directed to acquiring those users and building that audience; once both milestones are met, they are ours to use at our discretion for any lawful business purpose. As part of the founding offer we commit to provide each founding business a free additional year of marketing access to the platform's user audience following the founding year. The user figures are goals, not guaranteed counts of reachable users, and nothing here is a promise of sales, revenue, profit, or investment return."

Open questions for counsel: the two-phase use-of-funds (directed to user acquisition until the 200,000 prelaunch + 200,000 additional regular users are reached, then owner's discretion for any lawful business purpose) vs. the funds model and any refund/escrow language it reverses — including whether Phase 1 earmarking leans toward escrow/custodial treatment; framing the user figures as goals (not guaranteed reachable audiences); and whether the free additional marketing year needs its own delivery-guarantee wording and a line in the value stack. It must not read as a promise of a return.